

CLINKIT BUYER TERMS OF SERVICE

DRAFT — ATTORNEY REVIEW REQUIRED. GetBriefed Inc/LLC d/b/a Clinkit. Last updated {{Date}}.

1. What Clinkit is. Clinkit is a technology marketplace that (a) surfaces estimated retail prices at stores near you, and (b) connects you with independent contractor Runners who purchase and deliver goods you request. **Clinkit is not a retailer, does not hold inventory, and does not employ Runners.** The retail sale occurs between you and the store; Runner services are provided by the Runner.

2. Pricing & fees. Displayed prices are estimates from store APIs, licensed data sources, or recent verification, each stamped with source and freshness. Your total = actual shelf price + Runner procurement fee (the markup the Runner bid, shown before you accept, times any disclosed surge multiplier) + delivery fee + applicable taxes. If actual shelf prices at checkout differ from estimates by more than \$2.00 in total, you will be asked to approve before the Runner completes purchase. Final receipt replaces estimates.

3. Taxes. Where marketplace-facilitator laws apply, Clinkit collects and remits sales tax on taxable items; taxes are itemized at checkout and passed through — Clinkit does not profit from tax.

4. Payments. Processed by Stripe; your card is authorized when you accept a Runner bid and captured on delivery. Clinkit never stores card numbers.

5. Substitutions, missing items, refunds. You control substitutions in-app. Items the Runner marks out-of-stock are removed from your total. Report problems within 48 hours; remedies include re-delivery, credit, or refund per our published policy. Perishables: photo-documented condition at delivery governs.

6. Your responsibilities. Accurate address, lawful use, being available (or designating a safe drop location), no age-restricted items unless a verified flow is offered, treating Runners with respect. Abuse, fraud (including false non-delivery claims contradicted by photo/GPS proof), or chargeback abuse may result in account closure.

7. Disclaimers. SERVICES AND PRICE ESTIMATES ARE PROVIDED "AS IS." CLINKIT DISCLAIMS WARRANTIES OF MERCHANTABILITY, FITNESS, AND NON-INFRINGEMENT, AND DOES NOT WARRANT UNINTERRUPTED SERVICE OR THAT ESTIMATES MATCH SHELF PRICES. PRODUCT WARRANTIES, IF ANY, ARE THE STORE'S OR MANUFACTURER'S.

8. Liability cap. TO THE MAXIMUM EXTENT PERMITTED BY LAW, CLINKIT'S AGGREGATE LIABILITY FOR ANY CLAIM IS LIMITED TO THE GREATER OF \$100 OR THE AMOUNT YOU PAID FOR THE ORDER GIVING RISE TO THE CLAIM. NO INDIRECT, INCIDENTAL, OR CONSEQUENTIAL DAMAGES. Some jurisdictions do not allow these limits; they apply to the fullest extent permitted.

9. Arbitration & class waiver. Disputes are resolved by binding individual arbitration (AAA Consumer Rules, San Joaquin County CA or videoconference), with a 30-day opt-out by written notice, small-claims excepted. **Class actions are waived** to the extent permitted.

10. Privacy. The Clinkit Privacy Policy (03-privacy-policy.md) is incorporated, including your California (CCPA/CPRA) and, where applicable, GDPR-grade rights: access, export, correction, deletion. We do not sell

your personal information.

11. Changes; termination; law. We may update these Terms with 14 days' notice in-app (material changes) — continued use is acceptance. California law governs. Contact: legal@getbriefed.example (replace with live inbox before launch).